

**FEDERAL MARITIME COMMISSION**  
**Office of Administrative Law Judges**

20230930-DK-BUTTERFLY-1, INC. F/K/A BED BATH &  
BEYOND INC., *Complainant*

**DOCKET NO. 24-12**

v.

EVERGREEN LINE JOINT SERVICE AGREEMENT (FMC  
#011982) CONSISTING OF EVERGREEN MARINE CORP.  
(TAIWAN) LTD.; EVERGREEN MARINE (UK) LIMITED; ITALIA  
MARITTIMA SPA; EVERGREEN MARINE (HONG KONG) LTD.;  
AND EVERGREEN MARINE (SINGAPORE) PTE. LTD.,  
*Respondents.*

Served: December 20, 2024

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**ORDER OF:** Alex M. CHINTELLA, *Administrative Law Judge.*

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**AMENDED SCHEDULING ORDER**

On October 24, 2024, the parties filed a Joint Motion to Extend Deadlines [Dkt. 25]. On October 28, 2024, I denied the motion [Dkt. 26] because the parties had not provided sufficient detail from which I could determine that an extension was warranted and because there was still seven weeks in the schedule to complete document production, which the parties had identified as driving the need for the extension. I scheduled a status conference for December 16, 2024 for the purpose of determining whether an extension was still needed.

Prior to the status conference, on December 5, 2024, the parties filed a Joint Motion for Entry of Protective Order [Dkt. 27] and an Electronic Discovery Agreement [Dkt. 28]. I granted the motion for protective order [Dkt. 29] and on December 13, 2024, the parties filed a Joint Status Report [Dkt. 30] describing the progress of discovery, the obstacles encountered in producing documents, and reiterating their request for an extension of the schedule. At the status conference, Complainant further described its progress in using search terms to recover potentially responsive information from its database of preserved documents created following the Bed Bath & Beyond Inc. bankruptcy, its review process, and its plan to begin a rolling production this week. Respondents further described the status of their review and anticipated production schedule. Based on the parties' representations, and considering the volume of material to be reviewed and the resources they have deployed to complete that review, I find their requested extension reasonable.

It appears that the parties are working cooperatively to complete discovery, but as I stated in my last scheduling order, if any unresolved dispute is anticipated to have an impact on the deadlines below, or if a party anticipates filing a motion to compel, the parties must jointly email

me at [judges@fmc.gov](mailto:judges@fmc.gov), providing a brief description of the discovery dispute (less than 250 words), at which point I will schedule a conference or provide further instructions. If unanticipated technical issues arise that will impact the document production schedule, the parties must promptly file a joint status report describing the issues. Counsel are reminded that they should block out time now for depositions and provide me with witness subpoenas well in advance of deposition dates. Absent extraordinary circumstances, I will not extend the scheduling order due to unavailability of counsel or witnesses during the deposition period below.

The parties are **ORDERED** to adhere to the following amended schedule:

|                                                                                                                |                    |
|----------------------------------------------------------------------------------------------------------------|--------------------|
| Substantial completion of productions of documents and ESI in response to initial RFPs                         | February 28, 2025  |
| Parties to File Joint Status Report                                                                            | March 7, 2025      |
| Complete depositions of fact witnesses                                                                         | May 15, 2025       |
| Last day to serve interrogatories, requests for admission, and RFPs                                            | May 15, 2025       |
| Disclosure of initial expert reports, if any                                                                   | June 6, 2025       |
| Disclosure of rebuttal expert reports, if any                                                                  | June 30, 2025      |
| Complete expert depositions                                                                                    | July 22, 2025      |
| Close of discovery                                                                                             | July 22, 2025      |
| Complainant's initial brief, proposed findings of fact, and appendix                                           | August 22, 2025    |
| Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix | September 22, 2025 |
| Complainant's reply and responses to proposed findings of fact                                                 | October 7, 2025    |

**SO ORDERED.**

**ALEX  
CHINTELLA**

Alex M. Chintella  
Administrative Law Judge

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ALEX CHINTELLA  
Date: 2024.12.20  
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